Matter 20 — Exhibit Plan for the Peremptory Writ Motion (research draft, Oct. 24, 2026)

Newanforbi v. California Highway Patrol, et al., Alameda Super. Ct. No. 26CV191136, Dept. 25 (Hon. Jenna M. Whitman). Hearing January 8, 2027. This is a working plan, not a filing. Every path is relative to the repo root on branch `research/matter-20-2026-10-24`. `M20/` means `internal/private/research/matter-20/`. Nothing here was invented: if a document is not in the repo, it is listed under **Gaps**.

Bottom line. - Cite the petition exhibits (Pet. Exs. 1–14); don't re-attach them. - Attach the October 23 production through Brendan's declaration. - Put the court records (the Aug. 29 order, Krishnan Dkt. 5, and the Answer) in the RJN. - Lodge the native dashcam MP4s with the Notice of Lodging. - The packet as drafted uses only Pet. Exs. 1–3, 5, 7 and declaration Exs. A–F. It leaves out three things it should cite: the **CAD incident log** (arrest at 01:12), the **Paul April 10 email** (Pet. Ex. 13), and the **complaint letters** (Pet. Exs. 11–12).

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1. Evidence inventory

1A. Verified petition exhibits (already on file, filed with petition May 29, 2026)

Source: `documents/matter-32/from-20/Petition for Writ of Mandate.pdf` (153 pp.). A second copy at `M20/01-portfolio-records/matter-32/from-20/0.Newanforbi v. CHP - Writ of Mandate.pdf` is also 153 pp. and has the same creation date, but it is **not byte-identical**. Confirm which one is the clerk-stamped copy before citing PDF pages. Slip-sheet PDF pages below are from the `documents/` copy. The petition's index of exhibits is at petition pp. 42–43.

Pet. Ex.	Document	Date / author	PDF pp. (slip)	Petition ¶¶ citing	Notes
1	Denial letter, File No. 390.18437.17620.26-050	Apr. 20, 2026; Capt. G. Serrato	44–45	3, 51, 60, 62–63	Image-only body. Text sidecar (not an exhibit): `M20/07-source-text/main/internal/public/documents/matter-24/April 20 2026 Serrato U-Visa Denial Letter.txt`. The Answer admits the letter "speaks for itself" (¶¶ 60–61).
2	Request for U-status certification (4 pp.) + transmittal email to Sgt. Dutra cc Capt. Serrato, **Apr. 9, 2026, 2:00 p.m.**	Apr. 9, 2026; Brendan	46–51	48–49, 58	Proves the submission date and time. Answer ¶¶ 2, 16, 49, 58 admit it. Answer ¶ 58 calls the email "Exhibit 3"; the petition index puts the email in Ex. 2. Minor mismatch; cite both.
3	Supporting legal analysis and evidentiary summary (8 pp.)	Apr. 9, 2026; Brendan	52–60	48–49	Advocacy, not proof. Lists the memorandum's internal Exs. A–H.

Pet. Ex.	Document	Date / author	PDF pp. (slip)	Petition ¶¶ citing	Notes
4	Form I-918 Supp. B, pre-completed (5 pp.)	Apr. 9, 2026	61–66	1–2, 48	**Contains A-Number and DOB fields: redaction/ confidentiality issue (§ 4 below).**
5	Petitioner's verbatim timestamped dashcam transcript + April 9 declaration of authenticity	Nov. 1, 2024 events; prepared by Brendan	67–82	35–38, 44–48, 63	Also reproduced at `M20/00-user-inputs/Matter20_Merged_v3.pdf` pp. 73–87. **Transcript pp. 9–11 include the dispatch statement that Brendan is on parole for PC 289 and is a 290 registrant (01:11:42) and repeated "he's on parole" remarks.**
6	CHP 202 Arrest-Investigation Report, RJ68845 (petitioner's pre-litigation copy)	Nov. 1, 2024; Ofc. Meza-Gonzales	83–88	38, 44–48, 62–63	Same report as AGO 000029–000033. A DMV-discovery copy is at `M20/02-incident-evidence/matter-33/incident/Arrest Report.pdf` (5 pp.).
7	Pen. Code § 851.6 Detention Certificate, Dublin CHP-01991	Nov. 5, 2024 (copy footer May 12, 2025)	89–90	42, 48–49, 62–63	Issuance is admitted in Answer ¶¶ 42, 49.
8	Petitioner's sworn declaration (Apr. 9 memo Ex. D)	2026; Brendan	91–93	41, 51	
9	Centerline Drivers pay stubs (26 weeks, May 2024–Jan. 2025) + wage notice	Centerline Drivers LLC	94–129	33, 51	Damages/harm only; **not needed for Count 1**. Check SSN and account numbers (CRC 1.201).
10	DMV temporary license and APS hearing notice	DMV	130–139	40, 49, 51	Collateral consequence. DL number and DOB.
11	Mar. 26, 2026 complaint-assignment letter	Capt. Serrato	140–141	47, 49	Helpfulness/complaint chronology. **CHP's privilege log withholds this same letter (items 5 and 14).**
12	POST acknowledgment, PUBLIC-26-000371	Mar. 23, 2026; POST	142–143	43, 49	Helpfulness. Answer ¶¶ 49, 54 admit it.
13	Lt. Gary Paul email acknowledging receipt, "under review"	Apr. 10, 2026	144–146	50, 59	Proof of receipt. Answer ¶¶ 15, 59 admit it.
14	AG Information Bulletin DLE-2024-05 (AB 1261 U-visa guidance)	AG/DOJ	147–153	32	Legal authority; cite it, don't treat it as evidence.

1B. CHP's Verified Answer and discovery responses

- **Respondents' Verified Answer**, dated and served Oct. 12, 2026 (DAG Vanessa Ing; service declaration by H. Su). Location: `M20/00-user-inputs/Matter20_Merged_v3.pdf` pp. 1–19. It is **not** in the repo as a standalone file. **Surprise: this copy has no verification page.** Page 18 ends with the signature and page 19 is the service declaration. Obtain the file-endorsed copy and its verification before calling it "verified" or treating the admissions as verified admissions.
- **CHP's objections and responses to RFP Set One**, Oct. 20, 2026: merged PDF pp. 20–33. The Monica Ochoa verification (p. 33) is on information and belief, and its **execution day is blank ("October ___")**. For Nos. 7–8 (communications and the certification-decision file), CHP "will produce… to the extent such documents exist." No decision file was produced.
- Requests: `documents/matter-20/Request for Production of Documents Set One - CHP with Mail POS (Sep 16 2026).pdf` and the variants in `M20/03-discovery-production/matter-20/`.

Key admissions in the Answer (useful as judicial admissions, offered against the party):

¶	Admission	Denial or caveat in the same ¶
2, 16, 49, 58	Apr. 9, 2026 request emailed to Sgt. Dutra cc Serrato, with pre-completed I-918B, memorandum, transcript, CHP 202, detention certificate, and exhibits	—
3, 14, 60–61	Serrato denied on Apr. 20 on Dublin letterhead; the letter speaks for itself	—
13–14	CHP is a "certifying entity" (§ 679.10(a)(1)); Serrato is a "certifying official" (§ 679.10(b))	Paul and Dutra are not certifying officials
15, 59	Paul acknowledged on Apr. 10, "under review"	—
33	Brendan is a noncitizen who held a Class A CDL	—
34	Parked on the I-580 E shoulder in Livermore; vehicle **not moving** when observed	Denies the parking was lawful (Veh. Code § 22500(h))
35	Welfare check by Meza-Gonzales and Melano; "much of the incident was recorded" by dashcam	Calls the transcript "purported"
36, 44, 47, 49	Officers identified the cup as **urine**; Melano said aloud it smelled like urine; an empty Mike's Hard Lemonade can was found and called alcohol aloud; Brendan denied drinking it; the CHP 202 checks "alcoholic beverage present"	Denies the cup was the "sole articulated basis"
37, 44, 45	Officers **never told** him they smelled alcohol and **never told** him his speech was slurred; he identified Livermore, read signs, spelled his name; Tesla has no alternator	Denies "no objective signs"; denies an adequate Romberg; denies the video shows coherent speech "throughout"
38	Arrest for DUI "shortly after" refusal of a **"chemical alcohol test (either breath or blood)"**	Denies detention was based "solely" on refusal of a voluntary test

¶	Admission	Denial or caveat in the same ¶
39–41, 49	Transported **in handcuffs** to Dublin; blood draw about 2:38 a.m. (Ghaleb) under warrant; held at Santa Rita **Nov. 1–5, 2024**; "detained for driving under the influence"	Denies a parole hold; denies the warrant affidavit was false; denies the 202 was fabricated
42, 49	Detention Certificate issued Nov. 5, 2024 quoting §§ 849, 849.5, 851.6; **no DUI charges filed**	Lacks information on whether a prosecutor sought charges
49	DMV APS suspension Jan. 24, 2025; barred from commercial driving Feb. 20, 2025–Feb. 19, 2026; POST forwarded the complaint Mar. 23, 2026; Serrato's Mar. 26 letter	—
53	File No. 390.18437.17620 refers to the **I-918B certification file**, not a citizen complaint	Typo "18347" in the Answer
57	Denies that any "investigating entity" ever requested information from Brendan	Cuts in favor of the § 679.10(h) presumption
71	Denial issued **before the 30-day statutory deadline**	—
Aff. defs.	Failure to state; no abuse of discretion; good faith; **unclean hands**; contrary to law	Unclean hands is unexplained. Watch for it at the hearing.

1C. CHP Production Set One (served Oct. 23, 2026, DOJ FileXchange, Huihong Su)

Primary copies: `internal/docs/matter-20-production-set-one/`. Duplicate copies: `M20/03-discovery-production/session-uploads/` (hyphenated names, plus `Production_of_Documents__Set_One_-_….pdf`, the delivery email). Merged copy: `M20/00-user-inputs/Matter20_Merged_v3.pdf` pp. 34–72.

Doc	Bates	Pp.	Content / use
DOJ delivery email (Su), with file list and SHA-256 values	none	merged pp. 34–36	Chain of custody for the videos. **Redact the FileXchange message link and token.**
Dashcam Videos Coversheet	**unstamped**	1 (merged p. 37)	4 MP4s; files -1 are back-seat "no signal… hardware issue." (The Oct. 23 map memo says AGO 000022–24 for this sheet. **Wrong**: that range is the incident log.)
Incident Log / CAD 241101GG0064	AGO 000022–000024	3	"OFCR MEZA 23295 **1015 AT 0112**." Arrest/prisoner-in-custody at 01:12, printed 5/10/26. **Not cited in the memo.**
Beat sheet 10-31-2024	AGO 000025	1 (image)	Staffing only; reserve

Doc	Bates	Pp.	Content / use
CHP 202 / DS-367 / citation / warrant affidavit / CRIMS / tox / booking	AGO 000029–000053	25 (image)	202 at 000029–33 (walk-and-turn at 000031; arrest analysis at 000032; times PAS 0111 / arrest 0112 / admonition 0120). Ethanol **0.073 ± 0.004 g%** at AGO 000034. Drug panel 000035–37: THC-COOH 3.0 ng/mL only. DS-367 "driving not observed / driver admitted." Citation "not committed in my presence." Arrest screen AGO 000052 "MVARS: N." Blank property receipt AGO 000051. Warrant WAR913372 (sworn 02:30:22, signed 02:34:50). **The FST field notes were "thrown out"** (000031).
CHP 415 shift record, Meza-Gonzales	AGO 000054	1	Beat 068, partner Melano; reserve
CHP 415 shift record, Melano	AGO 000061	1	Reserve
Privilege Log	lists AGO 000001–21, 26–28, 55–60, 62–72	3	**15 entries, not 10** (the Oct. 23 map memo undercounts). They include: May 9 MVARS video-review memo (55–57); May 9 Meza-Gonzales interview memo (58–60); CHP 240B (62–63); May 20 Melano interview (64–65); **Aug. 18, 2026 CHP letter to Brendan (66)**; **Mar. 26, 2026 CHP letter to Brendan (67, and also item 5 at 18)**; CLETS return (68–72, §§ 11140/11142).
Su proof of service	none	1	Lists produced ranges: AGO 22–25, 29–54, 61.
4 native MP4s (`7659@20241101005536-0`, `…013330-1`, `…024702-0`, `…024704-1`)	none	—	**Not in the repo.** Per the map memo they are on Brendan's local drive and Google Drive. Descriptions: `internal/docs/matter-20-production-set-one/Matter 20 - CHP Production Set One Video (MP4) Descriptions (Oct 23 2026).md`.

1D. Other incident evidence (DMV / pre-litigation)

`M20/02-incident-evidence/matter-33/incident/`: - `Arrest Report.pdf` (CHP 202, 5 pp.) - `ds367 ngwanforbi f7953179.pdf` (DS-367, 6 pp.) - `DAD 2024-12-04.pdf` (DMV driver record, 4 pp.; **DOB, DL number, address**) - `DS2044 Notification of Discovery 34739340.pdf` (8 pp.) - `Discovery-Response.pdf` (DMV, 5 pp.) - `Exhibit_A_CHP_Video_Transcript.pdf` (19 pp., the E.D. Cal. version of the transcript)

Use these only as backups. The AGO-stamped production copies are better because CHP produced them.

1E. Court records

- **Aug. 29, 2026 Order Sustaining Demurrer in Part** (Whitman, 6 pp.): `M20/01-portfolio-records/matter-32/from-20/Order Sustaining Demurrer In Part - Whitman (Aug 29 2026).pdf`. A Notice of Entry version (Aug. 31) is in the same folder. Count 1 survives; the merits pathway is at p. 4.
- **Krishnan IFP/screening order**, N.D. Cal. 4:26-cv-05953-ASK, Dkt. 5, June 29, 2026 (5 pp.): `documents/opinions/Newanforbi v Serrato - USDC NDCal - IFP Granted Complaint Sufficient Jun 29 2026.pdf`. Duplicate at `M20/00-user-inputs/Newanforbi-v-Serrato-USDC-NDCal-IFP-Granted-Complaint-Sufficient-Jun-29-2026.pdf`.

- Tentative rulings (Jul. 12; Aug. 27), CM-110 (Jun. 30), FW-003 fee waiver (Jun. 3), and the demurrer papers. All are in `M20/01-portfolio-records/matter-32/from-20/`. None is needed as an exhibit.
- Sept. 8 lodging set: `documents/matter-20/Notice of Lodging - Nov 1 2024 CHP Dashcam Exhibit 5 Source (Sep 8 2026).pdf`, `…Declaration ISO Notice of Lodging…`, `…Proof of Service…`, and `…Notice of Confirmation of Electronic Filing (POS rejected Sep 8 2026).pdf`. Also the Ing secure-upload email (Sep. 10): `M20/01-portfolio-records/matter-20/Gmail - Ing asks for secure dashcam upload link (Sep 10 2026).pdf`.

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2. Assertion-to-evidence map (Revised_Motion_Packet.md)

Legend: ✅ supported by the cited source; ➕ supported, but add the listed cite; ⚠️ weak or pinpoint unconfirmed; ❌ no evidence in the repo.

Packet location	Assertion	Proof	Status / fix
Notice, p. 1	Motion based on "Exhibits 1–7"	—	➕ Expand to "Exhibits 1–8, 11–13." The memo needs 11–13 for helpfulness and receipt.
I ¶2; II ¶5	Apr. 9 request with form, transcript, records	Answer ¶¶ 2, 16, 58; Pet. Exs. 2–5	✅ ➕ add Pet. Ex. 2 transmittal (2:00 p.m.) and Ex. 4 (the form itself)
I ¶2; II ¶5; IV	Apr. 20 denial on no-qualifying / no-substantially-similar grounds; does not cite helpfulness	Pet. Ex. 1; Answer ¶¶ 3, 60–61; Order p. 2	⚠️ The letter body is image-only. Visually confirm the quotation from Pet. PDF p. 45 (open question 7).
I ¶4; V	CHP 202 says he "chose not to perform" walk-and-turn; "poor performance on the FST's"	AGO 000031–000032 (Decl. Ex. B); Pet. Ex. 6	⚠️ Confirm the Bates overlay visually. Cite Pet. Ex. 6 page as a fallback.
I ¶4; V; Decl. ¶5	Transcript: "I think we can do that"; Melano: uneven ground	Pet. Ex. 5 p. 9, 01:10:14–30	⚠️ Petitioner-prepared. **Native MP4 …005536-0 must be lodged** (NoL) and the segment verified.
I ¶4; VII; Decl. ¶6	PAS refusal at 01:11:15, then immediate handcuffing; chemical-test talk starts 01:15:54	Pet. Ex. 5 pp. 9–10	➕ **Add CAD AGO 000022 ("1015 AT 0112") and CHP 202 times (PAS 0111 / arrest 0112 / admonition 0120, AGO 000030/000033).** These are CHP's own records, and they put the arrest before any chemical-test refusal. That impeaches Answer ¶ 38's "shortly after… chemical alcohol test." This is the strongest uncited point.

Packet location	Assertion	Proof	Status / fix
I ¶5	CHP is a certifying entity and Serrato a certifying official	Answer ¶¶ 13–14	✅
II ¶1	Parked, not moving, welfare check, dashcam	Answer ¶¶ 34–35	✅
II ¶2	Urine cup; Mike's can; box checked	Answer ¶¶ 36, 47	✅
II ¶3	No odor or slurring told to him; report claims both	Answer ¶¶ 37, 44–46	✅ ➕ AGO 000030, 000032 for the report's text
II ¶4	Handcuffs, Dublin, 2:38 draw, Santa Rita Nov. 1–5, certificate, no charges	Answer ¶¶ 39–42, 49; Pet. Ex. 7	✅
II ¶5	Paul acknowledged on Apr. 10	Answer ¶¶ 15, 59	➕ Pet. Ex. 13
II ¶5	Denial was before the 30-day mark	Answer ¶ 71	✅ (11 days: Apr. 9 → Apr. 20)
IV ¶3	Handcuffed, transported, confined for days	Answer ¶¶ 39–41, 49	✅
IV ¶4	No charges; certificate	Answer ¶¶ 42, 49; Pet. Ex. 7	✅
V ¶6	HGN, Romberg 43 s with eyelid flutters, OLS declined	AGO 000031	⚠️ Bates pinpoint
V ¶6; VI ¶3	0.073 ± 0.004 g%	AGO 000034 (Decl. Ex. B)	⚠️ Visually confirm AGO 000034. ➕ The drug panel (AGO 000035–37) shows THC-COOH only. Cite it if impairment by drugs is argued.
V ¶7; Decl. ¶10	Privilege log; May 9 memos postdate the denial	Decl. Ex. C (privilege log)	✅ ➕ The log has **15 entries**. It also withholds the May 20 Melano interview, the Aug. 18 letter, and the **Mar. 26 letter that is already public as Pet. Ex. 11** (waiver/overbreadth point).
VI ¶1	Handcuffed, transported (CHP 202 narrative p. 5)	Answer ¶¶ 38–41; AGO 000033	✅
VI ¶2	Welfare approach; window at 00:56:40; door opened 00:56:43	Answer ¶ 35; Pet. Ex. 5	⚠️ Transcript only; verify on the native recording

Packet location	Assertion	Proof	Status / fix
VI ¶3	§ 40300.5 obstruction; warrant at 2:34; draw at 2:38	AGO 000029–53 (warrant WAR913372)	➕ Cite the warrant page and the **DS-367 "driver admitted / not observed"** box plus the citation's "not in my presence" (inside AGO 000038–53; pinpoint not yet confirmed). Answer ¶ 34 (not moving).
VI ¶5	Aug. 29 order recitals	RJN-1	✅
VIII	Complained to CHP and POST; supplied a timeline and transcript; identified the officers	Decl. ¶¶ 7–9; Pet. Exs. 2–3; Answer ¶¶ 49, 54, 58	➕ **Add Pet. Exs. 11 (Mar. 26 Serrato letter), 12 (POST ack), 5.**
VIII	No investigating entity ever requested information	Answer ¶ 57	✅
IX	Krishnan Dkt. 5, pp. 4–5 quotes	`documents/opinions/…Jun 29 2026.pdf`	✅ via RJN-2. **Remove the duplicate Decl. Ex. F.**
Decl. ¶2	"rented" Tesla; asleep; not driving	Personal knowledge; AGO 000032 (asleep); Answer ¶ 34	❌ for "rented" (the 202 lists a 2023 Tesla Model Y with no rental record). Personal knowledge is enough, but expect cross-examination.
Decl. ¶3	He prepared the transcript; the Joselyn error	Pet. Ex. 5 + authenticity declaration (Pet. PDF p. 82)	✅
Decl. ¶6	Did not consent to the blood draw	Answer ¶ 49 (a warrant was obtained); DS-367 refusal	✅ consistent
Decl. ¶¶ 7–8	Reported to CHP/POST; never refused a reasonable request	Pet. Exs. 11–12; Answer ¶¶ 54, 57	➕ cite them

Packet location	Assertion	Proof	Status / fix
Decl. ¶11 / Ex. D	Sept. 8 lodging confirmation (proof of service rejected)	`documents/matter-20/Notice of Confirmation…`	⚠️ Low value. Drop unless the service cure is shown.
Decl. ¶12 / Ex. E	Answer	merged pp. 1–19	⚠️ Answer is a court record, so move it to the RJN (§ 452(d)). **No verification page in this copy.**

Documents that should be cited but are not: - CAD incident log, AGO 000022–24 (arrest at 01:12) - CHP 202 time entries - DS-367 "driving not observed" - citation "not in presence" (§ 40600) - the destroyed FST notes (AGO 000031) - MVARS "N" vs. "YES" (AGO 000052 vs. 000029) - dashcam coversheet ("no signal" back-seat camera) - Pet. Exs. 4, 11, 12, 13 - RFP responses Nos. 7–8 (no decision file produced)

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3. Proposed final exhibit list

3A. Petition exhibits: cite them, don't re-attach (the existing numbering stays)

Cite as "Pet., Ex. __." They are on file with the verified petition, and Answer ¶¶ 58, 60–61 admit Exs. 1 and 3 (the email) "speak for themselves." - Pet. Ex. 1 (denial): memo I, II, IV, X; RJN-3 - Pet. Ex. 2 (request + 2:00 p.m. transmittal): I, II, VIII; Decl. ¶9 - Pet. Ex. 3 (supporting memo): VIII - Pet. Ex. 4 (I-918B as submitted): II (the form requested) and the Proposed Order (the form to be signed). Cite it; never re-attach the unredacted form. - Pet. Ex. 5 (transcript + authenticity declaration): I, V, VI, VII; Decl. ¶¶ 3–6 - Pet. Ex. 6 (CHP 202 copy): fallback to AGO 000029–33 - Pet. Ex. 7 (detention certificate): II, IV, VI; RJN-4 - Pet. Exs. 11, 12, 13: VIII (helpfulness), II (receipt)

Not cited: Exs. 8, 9, 10, 14. Ex. 14 is authority.

Risk of relying on petition exhibits. On a noticed motion under CCP § 1094, the court decides on admissible evidence. Verification makes the petition evidence only of facts within the verifier's personal knowledge. Exhibits 1–7 come in through Brendan's verification plus the Answer's admissions. Ex. 5 still needs the native recording. Reduce the risk this way: - add one declaration sentence (new ¶ 9A) confirming that Pet. Exs. 1, 2, 4, 5, 7, 11–13 are true copies of what he sent or received; - list them in the Notice of Lodging, Part I; - bring tabbed courtesy copies.

Dept. 25 may also want the evidence in the moving papers themselves; check the local rules and the department's preferences.

3B. Declaration exhibits (authenticated by Brendan as the recipient of the production)

Ex.	Document (path)	Purpose	Cited at	Decl. ¶	Hearsay / authentication
A	DOJ Oct. 23 delivery email + Su proof of service (`M20/03-discovery-production/session-uploads/Production_of_Documents__Set_One_-_….pdf`; `internal/docs/matter-20-production-set-one/Proof of Service.PDF`)	Provenance of B, C, G, H; Bates ranges produced	V; No L II	10	Authenticity of the production is admitted by CHP's own act of producing it (Evid. Code § 1414(b)). Not offered for truth. **Redact the FX link and token.**
B	CHP 202 / DS-367 / citation / warrant / lab packet, AGO 000029–000053 (`internal/docs/matter-20-production-set-one/Exhibit 5, CHP 202, DS 367, Warrant Affidavit.pdf`)	Walk-and-turn text; FST analysis; times; 0.073; DS-367 not observed; notes destroyed; MVARS conflict	I, V, VI, VII	10	Party admission against CHP (§§ 1220, 1222); official record (§ 1280); lab result is an official record or business record. Produced by CHP (§ 1414). **Redact DOB, DL number, CII/ booking numbers, home address, and the criminal-history/CLETS fields** (§ 4).
C	Privilege log, 3 pp. (`internal/docs/matter-20-production-set-one/Privilege Log.PDF`)	What was withheld; post-denial memos; withholding of letters sent to petitioner	V	10	Offered as CHP's statement of what it withholds. No inference about content.
D	CAD Incident Log 241101GG0064, AGO 000022–000024 (`internal/docs/matter-20-production-set-one/Exhibit 3, Incident Log 241101GG0064.pdf`)	**Arrest/1015 at 01:12**, before the chemical-test discussion; impeaches Answer ¶ 38	VII (new cite), VI	10 (add)	§§ 1220/1280; produced by CHP. Clock-sync caveat.
E	Dashcam Videos Coversheet (`internal/docs/matter-20-production-set-one/Dashcam Videos Coversheet.pdf`)	Identifies the native files; back-seat camera "no signal"	VI; No L III	10 (add)	CHP statement (§ 1220). Unstamped page, so cite it by title.

Ex.	Document (path)	Purpose	Cited at	Decl. ¶	Hearsay / authentication
F	(reserve) CHP RFP responses + Ochoa verification, merged pp. 20–33	Nos. 7–8: no certification-decision file produced	V (optional)	10 (add)	Party statement. Use only if arguing that the record of what was considered is empty.

The packet's current Ex. D (Sept. 8 NEF), Ex. E (Answer), and Ex. F (Krishnan) should be **dropped from the declaration**: - Sept. 8 NEF: optional; cite it only in the NoL. - Answer: moves to RJN-3. - Krishnan order: already RJN-2. Attaching it twice invites a "cumulative/ improper" objection. - Re-letter the declaration as A–F per the table above, and conform Decl. ¶¶ 10–13 and the proof of service ("Exhibits A–F").

3C. Request for Judicial Notice (Evid. Code §§ 452, 453)

RJN	Document	Basis	Purpose / limit	Cited at
RJN-1	Aug. 29, 2026 Order Sustaining Demurrer in Part (6 pp.)	§ 452(d)	Scope of Count 1; p. 4 pathway; not findings	I, VI, VIII
RJN-2	Krishnan Dkt. 5, June 29, 2026 (5 pp.), `documents/opinions/…`	§ 452(d) (U.S. court)	Existence, text, screening disposition; **not truth, not preclusion**. P. 3 calls certification discretionary; disclose this candidly.	IX
RJN-3 (**revised**)	Respondents' Answer, Oct. 12, 2026	§ 452(d)	Court file. Admissions bind as judicial admissions without notice of truth. **Get the endorsed copy with its verification.**	II–VIII
RJN-4 (**optional**)	Denial letter (Pet. Ex. 1) and detention certificate (Pet. Ex. 7)	§ 452(c)	Existence and terms only. Issuance and content are already admitted (Answer ¶¶ 42, 60–61), so § 452(c) adds little. Keep one consolidated entry or drop it.	II, IV

The draft RJN's items 3 and 4 (denial letter and certificate as separate entries) can be merged into RJN-4 or dropped. Don't put the Form 202 or the transcript in the RJN; the draft already correctly excludes them.

3D. Notice of Lodging

- **Part I (on file):** Petition and Pet. Exs. 1–7, 11–13; RJN-1; Answer.
- **Part II (production):** Decl. Exs. A–E by cross-reference.
- **Part III (physical media, CRC 3.1302 / Dept. 25 procedure):** Lodge a USB with the native MP4s exactly as produced: `7659@20241101005536-0.mp4` (primary, 00:54:36–~01:59:51), `…024702-0.mp4` (facility arrival), and the two `-1` back-seat files. Include the SHA-256 values from DOJ's email (merged p. 35), a lodging declaration by Brendan comparing those hashes, and a **timestamp index** of the cited segments (00:56:40–43,

00:58:51–00:59:04, 01:08:40–45, 01:10:14–30, 01:10:33–01:11:33, 01:15:54, 01:22:15). Serve a copy on DAG Ing. **Cure the rejected Sept. 8 proof of service** before relying on any prior lodging.

- Do **not** lodge privilege-log items (we don't have them) or the Pen. Code § 832.7 materials.

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4. Authentication, hearsay, redaction, confidentiality

Authentication and hearsay - **CHP records (B, D, E):** produced by the adverse party in discovery, so authenticity is admitted by conduct (Evid. Code § 1414). When offered against CHP they are party admissions (§§ 1220, 1222) and are independently official records (§ 1280). - The officers' contested observations (odor, slurring) are offered for the fact that CHP asserted them, which is not hearsay. - The 0.073 result and the DS-367 come in as official records. The toxicologist's opinion beyond the number would need foundation. - **Recording:** authenticated as CHP's produced file (hash match, § 1414) plus Brendan's testimony as a participant (§ 1400 et seq.). Officers' statements on it are party admissions or operative words. Brendan's own recorded statements are offered for the fact they were said (non-hearsay) or as state of mind. - **Transcript (Pet. Ex. 5):** a demonstrative aid only. The recording controls (Decl. ¶3 already says so). - **Answer:** judicial admissions. Quote the "speaks for itself" responses narrowly. - **Petitioner's April 9 memo (Pet. Ex. 3):** advocacy, offered for receipt and notice, not for truth.

Redaction (CRC 1.201: mandatory for SSNs and financial account numbers, last 4 only) - Pet. Ex. 9 pay stubs: check visually for SSN and bank fields. It is already on public file; consider a motion to seal or redact (CRC 2.550–2.551). Don't use it. - AGO packet and DMV DAD: DOB 09/16/1996 and DL F7953179 appear. Neither is mandatory under 1.201, but redact them anyway as good practice, along with booking, CII, and CAR numbers. - **Form I-918B (Pet. Ex. 4):** A-Number and DOB fields. Already public. Cite the existing exhibit; don't refile it unredacted; consider a sealing or redaction motion for the petition copy. - **Immigration and criminal-history content:** Pet. Ex. 5 (01:11:42 parole/PC 289/290 dispatch; 01:13:31 ankle bracelet; 01:18:34, 01:24:17) and the CLETS-derived fields in AGO 000029–53 (privilege log item 15 cites §§ 11140/11142). Recommendations: - lodge a redacted public version of any re-filed transcript excerpt; - § 679.10 itself bars denial based on criminal history (subd. (k)(3)(A)), so relevance is low and prejudice is high; - expect CHP's unclean-hands defense to try to use it. - **§ 679.10 confidentiality:** § 679.10 restricts a certifying entity's disclosure of a requester's immigration status (verify the exact subdivision before citing). That duty runs to CHP, but petitioner-side filings should minimize immigration detail too: the noncitizen status admission (Answer ¶ 33) is enough. No § 832.7/Pitchess material is in hand, and none should be filed. - **Don't publish** the DOJ FileXchange link, Drive locators, or repo paths on any court paper.

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5. Gaps

1. **Native dashcam MP4s are not in the repo.** The motion's core walk-and-turn and PAS points depend on them. Hash-verify and lodge them.

2. **Answer verification page missing** from the only copy (merged pp. 1–19). Also no file-endorsed copy.
3. **Denial letter:** image-only. Obtain a clean scan and confirm the quotation word for word (open question 7). No standalone PDF exists (sidecar `.meta.json` says so).
4. **No written explanation beyond the five-sentence letter.** No decision file was produced (RFP Nos. 7–8 promised "to the extent such documents exist"). Nothing shows what Serrato reviewed in the 11 days. Possible motion to compel.
5. **Proof of submission:** the Pet. Ex. 2 transmittal (2:00 p.m.) and Answer ¶¶ 16, 58 are enough. No server delivery receipt is needed.
6. **Timeline vs. the 30-day deadline:** Apr. 9 request, Apr. 10 acknowledgment, Apr. 20 denial (day 11). Admitted timely (Answer ¶ 71), so there is no deadline claim. The May 9 and May 20 internal memos (privilege log 9, 10, 12) **post-date** the denial; don't argue inferences from them.
7. **Helpfulness evidence:** only the Mar. 23 POST ack, the Mar. 26 letter, the Apr. 9 package, and Decl. ¶¶ 7–8. The privilege log shows CHP opened complaint investigation 390-26-002 and interviewed both officers, but there is no record that anyone asked Brendan for an interview. The Aug. 18, 2026 CHP letter to Brendan (log item 13) is **not in the repo**. Brendan should have the original; find it.
8. **Arrest/disposition records:** the detention certificate and Answer ¶ 42 suffice. There is no DA declination or rejection record, and the Answer denies knowledge. CHP's CRIMS judicial-determination box is blank.
9. **Pinpoints to confirm visually:** AGO 000031–34 (walk-and-turn, 0.073); the DS-367 and citation pages within 000038–53.
10. **Video coverage gaps:** no forward video 01:59:51–02:46:03 (Dublin processing); back-seat cameras "no signal"; the transcript ends at 01:57:10.
11. **Two non-identical petition PDFs:** confirm the conformed copy before citing page numbers.

6. Surprises and conflicts

- **Answer ¶ 38 vs. CHP's own records:** the Answer says the arrest came "shortly after" refusal of a chemical (breath/blood) test. CHP's CAD (AGO 000022: "1015 AT 0112") and the CHP 202 (PAS 0111, arrest 0112, implied-consent admonition 0120) put the arrest **after the PAS refusal and before any chemical-test refusal**. The verified pleading contradicts CHP's production. The packet notes the ambiguity but doesn't cite the CAD.
- **Answer ¶ 49** admits Brendan was "detained for driving under the influence" and **denies a parole hold**. The transcript's dispatch line and Melano's "parole" remarks (01:11:42–01:24:21) show parole status was discussed. This could become an unclean-hands or criminal-history fight; § 679.10(k)(3)(A) answers it.
- **Privilege log withholds letters CHP sent to Brendan,** including the Mar. 26, 2026 letter that is **already public as Pet. Ex. 11**. The log has 15 entries, not the 10 the Oct. 23 memo reports, and it adds the May 20 Melano interview, the Aug. 18 letter, and the CLETS return.

- **The FST field notes were destroyed** (CHP 202, AGO 000031). The 202 says "MVARS: YES" but the arrest screen (AGO 000052) says "N." The DS-367 shows driving was not observed.
- **The Oct. 23 map memo mislabels the coversheet** as AGO 000022–24; that range is actually the incident log.
- **Unverified "verified" documents:** the Answer copy has no verification, and the RFP verification has a blank execution date.
- **The revised packet has internal conflicts:**
- the declaration attaches the Krishnan order (Ex. F) **and** the RJN offers it (RJN-2);
- the Answer is a declaration exhibit (Ex. E) instead of an RJN item;
- the Notice says "Exhibits 1–7" while the memo should also rely on Exs. 11–13.